

Referral Partner Agreement

Facility, Clinic, or Gym. Stem Cell Services. Editable template. Regenerative Revival.

This Referral Partner Agreement (the “Agreement”) is entered into as of [EFFECTIVE DATE] by and between [COMPANY LEGAL NAME], a [STATE] [ENTITY TYPE] (“Company”), and [PARTNER LEGAL NAME] (“Partner”). Company and Partner are each a “Party” and together the “Parties.”

Template note: fields in [brackets] are edited for each partner. The fee and payment terms live in Exhibit A so they can be updated without rewriting the body. This template is a starting point for review by Company's healthcare counsel and is not legal advice.

Important. Paying a percentage of the price of a medical treatment in exchange for referrals can trigger state fee-splitting and patient-brokering rules, and the federal Anti-Kickback Statute where any government-program dollars are involved. A flat, fair-market-value marketing or education fee that does not vary with the number of referrals or the price of treatment generally carries lower risk. This template supports either approach (see Exhibit A) and should be reviewed by healthcare counsel before signing.

1. Engagement and Purpose

Company markets and coordinates access to regenerative therapies, including mesenchymal stem cell (MSC) and exosome-based treatments (the “Services”). Partner operates a facility, clinic, gym, or similar business and wishes to educate and promote the Services to its clients or members and to refer interested individuals to Company's intake process. Company engages Partner as an independent, non-exclusive marketing and referral-source partner on the terms below. Partner does not deliver, and is not responsible for delivering, the Services, which are provided by Company's licensed medical network.

Company's business-development representative for this relationship is [REP NAME, e.g. Reggie or Jared]. Any compensation Company pays its own representative is an internal matter between Company and that representative and is separate from, and not added to, the fees payable to Partner under this Agreement.

2. Definitions

- **Qualified Referral** means a prospective client who reaches Company through Partner's unique tracking link or code, or who identifies Partner at intake, and completes Company's intake process.
- **Completed Transaction** means a Service that has been delivered or scheduled and paid for in full, and for which the applicable refund or cancellation window has passed.
- **Collected Revenue** means the amount Company actually collects from a client for a Completed Transaction, net of discounts, taxes, financing fees, and chargebacks.
- **Tracking Link/Code** means the unique referral link and/or code Company issues to Partner through Everflow for attribution.

- **Attribution Window** means the [30]-day period after a prospect first uses Partner's Tracking Link/Code, or is recorded as referred by Partner, during which a resulting Completed Transaction is credited to Partner, subject to Company's verification.

3. Scope of Services

This Agreement covers the stem cell and regenerative Services listed in Exhibit A. Peptide products and any other offerings are not covered by this Agreement.

4. Fee and Compensation

- Company will pay Partner the fee set out in **Exhibit A** (Fee and Payment Schedule).
- The fee is earned only on a Completed Transaction that is properly attributed to Partner within the Attribution Window and verified by Company.
- No fee is owed on Partner's own personal purchases, on canceled or refunded transactions, or on amounts Company does not actually collect.
- The Parties may update Exhibit A by mutual written agreement if the structure or rate changes. A new signed Exhibit A replaces the prior one going forward; fees already earned are not affected.

5. Tracking and Attribution

- Company issues Partner a unique Tracking Link and/or Code through Everflow. Partner must use only the Tracking Link/Code issued to it.
- Company verifies attribution and completion before paying any fee. Attribution is last-touch within the Attribution Window.
- Partner will not stuff cookies, spam, use incentivized clicks, or promote in any deceptive or non-compliant way. Self-referrals made to earn a fee are not permitted.

6. Payment Terms

- Company pays earned fees on the schedule in Exhibit A (default: Net [30] from the date a Completed Transaction is verified, batched monthly).
- Company pays once Partner's payable balance reaches the minimum threshold of [\$ AMOUNT]. Payment method: [ACH / check / other].
- Partner is an independent contractor responsible for its own taxes. Company will issue a Form 1099 where required, and Partner will provide a completed Form W-9 before the first payment.

7. Clawback and Adjustments

- If a client cancels, refunds, or charges back a transaction, or if Company does not collect the full amount, the related fee is reversed.
- Company may offset reversed fees against future payments or, if none are due, invoice Partner for the amount, payable within [15] days.

8. Compliance, Conduct, and Marketing Standards

Partner agrees to the following at all times. These standards protect clients, Company, and Partner, and they reflect Company's medical compliance guidelines.

- **No medical claims about Company's Services.** When promoting the Services, Partner will not use the words "heal" or "cure," will not promise or guarantee outcomes, and will not claim a therapy "fixes" any condition. Partner will use education-first language such as "support," "promote," "may help," or "designed to support."
- **Candidacy and disclosure.** Partner will include a candidacy disclaimer (for example, "not everyone is a candidate") and will disclose its financial relationship with Company where required, consistent with applicable advertising and FTC rules.
- **Approved materials only.** Partner will use only the marketing materials, claims, and testimonials approved by Company (see Exhibit B), and will not create new medical claims or use unapproved before-and-after or testimonial content.
- **Company review.** All Partner content that references Company or the Services is subject to Company review, and Company may require edits or removal.
- **Health information.** Partner will handle any client or patient information in accordance with applicable privacy laws, and intake and medical communications for the Services run through Company's systems.
- **Compliance with law.** Partner will comply with all applicable laws, including advertising rules and applicable state healthcare rules, and with Company's compliance guidelines as updated from time to time.

9. Independent Contractor

Partner is an independent contractor. Nothing in this Agreement creates an employment, agency, partnership, or joint venture relationship. Partner has no authority to bind Company, to set or quote prices other than Company's published prices, or to act on Company's behalf, and is not entitled to employee benefits.

10. Representations and Warranties

- Each Party has the authority to enter into this Agreement.
- Partner will perform bona fide marketing, education, services, and the Parties intend that the compensation under this Agreement reflects the fair market value of those services and is not a payment for patient referrals.
- If Partner is a licensed healthcare provider or healthcare facility, Partner is responsible for complying with all laws that apply to it, including any fee-splitting, self-referral, and anti-kickback rules, and has confirmed its participation is permitted.

11. Confidentiality

Each Party will keep the other's non-public information confidential, including pricing, client lists, business plans, and the terms of this Agreement, and will use it only to perform under this Agreement. This Section survives termination.

12. Term and Termination

- This Agreement begins on the Effective Date and continues for [one year], then renews for successive [one-year] terms unless either Party gives [30] days' written notice of non-renewal.
- Either Party may terminate for convenience on [30] days' written notice. Either Party may terminate immediately for a material breach not cured within [10] days of notice, and Company may suspend or terminate immediately for a compliance violation.
- On termination, Company will deactivate Partner's Tracking Link/Code and will pay fees earned on Completed Transactions before the termination date, subject to clawback. No fee is earned on transactions completed after termination.

13. Indemnification and Limitation of Liability

- Each Party will indemnify the other against third-party claims arising from its own breach, negligence, or violation of law. Partner will indemnify Company for claims arising from Partner's statements or non-compliant conduct.
- Except for indemnification obligations, breach of confidentiality, or willful misconduct, neither Party is liable for indirect or consequential damages, and each Party's total liability is limited to the fees paid or payable in the [12] months before the claim.

14. General

- **Governing law.** This Agreement is governed by the laws of the State of [STATE], without regard to its conflict-of-laws rules.
- **Entire agreement and amendment.** This Agreement, including its Exhibits, is the entire agreement between the Parties and replaces any prior understanding. It may be amended only in a writing signed by both Parties, except that Exhibit A may be updated as described in Section 4.
- **Assignment.** Partner may not assign this Agreement without Company's written consent. Company may assign it to an affiliate or successor.
- **Notices.** Notices must be in writing and sent to the contact information below or to an updated address provided in writing.
- **Severability and waiver.** If any provision is unenforceable, the rest remains in effect. A waiver is effective only if in writing.
- **Counterparts and electronic signature.** This Agreement may be signed in counterparts and by electronic signature, each an original.

Agreed and accepted:

COMPANY: [COMPANY LEGAL NAME]

By: _____ Date: _____

Name: [] Title: []

PARTNER: [PARTNER LEGAL NAME]

By: _____ Date: _____

Name: [] Title: []

Exhibit A - Fee and Payment Schedule

Complete this Exhibit for each partner. If the structure or rate changes, replace it with a new signed Exhibit A.

Pick one fee structure below. A flat fee that does not vary with treatment price or referral count generally carries lower legal risk than a percentage of treatment revenue. Confirm the structure with counsel.

Item	Fee to Partner	Earned when	Notes
Stem cell and regenerative Services (all treatment areas on Company's then-current price list)	[]% of Collected Revenue OR flat \$ [] per Completed Transaction	Treatment completed and paid in full; refund window passed	Cap, if any: \$[]

Lower-risk alternative: a flat monthly marketing or education fee that does not vary with referrals: \$[] per month for the activities described in [scope].

Payment schedule: Net [30] from verification of a Completed Transaction, batched monthly.

Minimum payout threshold: \$[].

Payment method: [ACH / check / other].

Attribution window: [30] days, last-touch.

Tracking code/link: [issued via Everflow].

Approved by Company: _____ **Date:** _____

Acknowledged by Partner: _____ **Date:** _____

Exhibit B - Approved Marketing Standards and Prohibited Language

These standards apply to all Partner content that references Company or its Services. They are the same for every partner.

Always do

- Use education-first, supportive language: “support,” “promote,” “may help,” “designed to support.”
- Include a candidacy disclaimer, for example: “Not everyone is a candidate. Eligibility is determined after a medical review.”
- Disclose the relationship where required, for example: “in partnership with Regenerative Revival.”
- Use only Company-approved graphics, captions, and testimonials.
- Send anyone with medical questions to Company’s intake process.

Never do

- Never use “heal” or “cure.”
- Never promise or guarantee results, or say a therapy “fixes” a condition.
- Never give medical advice on Company’s behalf or speak for the medical team.
- Never make a claim that is not in the approved materials.
- Never collect or post a client’s medical or personal health information outside Company’s systems.

Compliant phrasing examples

Instead of	Use
“Stem cells heal your knees”	A regenerative approach designed to support joint health
“This cures neuropathy”	May help support nerve-related symptoms; candidacy is reviewed individually
“Guaranteed results”	Results vary, and not everyone is a candidate